
OREGON'S PUBLIC RECORDS LAW, AS APPLIED

TO The Oregon Legislature: the Senate Interim Committee on Rules; the Joint Committee on Legislative Audits; Senator Dick Anderson; Representative Boomer Wright

CC Governor Tina Kotek; Attorney General Dan Rayfield; the Public Records Advocate and the Public Records Advisory Council; the Secretary of State, Audits Division; the Oregon Parks and Recreation Commission; Superintendent Casey Coddling, Oregon State Police

FROM Robert Samuel White, P.O. Box 334, Reedsport, Oregon 97467

DATE October 8, 2026

RE A request that the Legislature examine how Oregon's public records law is applied to the public, and close the gaps the Attorney General's rulings rely on

TESTIMONY [v1.11](#)

AI DISCLOSURE [How this record is made.](#)

To the members of the Legislature,

I ask the Legislature to examine how state agencies and the Attorney General apply Oregon's public records law to the people who use it, and to close the gaps the Attorney General's office relies on to decline review. What follows is one requester's record from 2025 and 2026. Every document is published in full at oprdivolunteerabuse.org.

I am Robert Samuel White. In 2025 I served as an unpaid volunteer park host for the Oregon Parks and Recreation Department at Jessie M. Honeyman Memorial State Park, living on the land I served. On March 24, 2025, OPRD dismissed me as a volunteer, with twenty-four hours to vacate the park where I lived.^{1,2} On August 24, 2025, I published an open letter to the Director requesting five protections for every volunteer.³

WHAT IT TOOK TO LEARN WHO CAME TO MY DOOR

On March 3, 2026, OPRD Emergency Manager Jamen Lee sent my letters to Captain Kyle Kennedy, OSP Government and Media Relations: "Fyi – sharing for situational awareness since he is now including the Governor as well as our Director." On March 4, 2026, the dispatch record was entered: "Capt. Kennedy is requesting that a threat assessment be conducted asap."⁴ On March 24, 2026, one year to the day after the dismissal, two state detectives and a Forest Service special agent came through a locked federal gate to the work center where I live and work. I did not know any of them.

On April 3, 2026, I asked Oregon State Police for "names, badge numbers, and unit assignments of all Oregon State Police officers present." I had recorded the officers leaving, and the request gave the license plate on my recording: Oregon plate 731 QRV.⁵ The same day, Marni L. Carlson wrote: "The Department has conducted a search which identified no records responsive to your request."⁶ That evening I asked her what search she had performed.⁷ On April 13 she wrote: "Upon further review, OSP has identified the following responsive records." She listed one, a CAD record, for \$12.50 by check or money order. Below the list, the letter said: "The body cam is exempt from disclosure." No recording was on the list of responsive records. The letter did not answer my question.⁸ On July 14, Micah Hubbard released the CAD record. It named one officer: "Hyde, Jake." Its only comment described the visit as "FOR THE FOREST SERVICE," a follow-up interview with me.⁹ Ten days later, the District Ranger for the Forest Service wrote to me: "Regarding the CAD entry stating, 'FOR THE FOREST SERVICE,' I am unsure why that wording appears, as the Forest Service did not initiate the interview."¹⁰

On July 22, I petitioned the Attorney General.¹¹ On July 27, Hubbard reopened the request: “A thorough review of your request has resulted in the finding of additional records, not in our system at the time of the original request.”¹² On August 11, she identified the records responsive to the request Carlson had answered on April 3: “OSP Incident Reports and Attachments,” “CAD,” “Officer Notes,” “OSP Dispatch Records,” “Electronic Communications,” and “Body Cam Video.” The letter stated: “We will require an estimated processing fee to be paid prior to processing.” The fee was \$157.50, by check or money order only.⁵ I mailed a check. On September 3, 2026, Oregon State Police produced its file. It named the second detective, Jerred Nelson of the Major Crimes Section. It showed that on March 23, Nelson had opened his own dispatch event naming me “Suspect,” with the basis: sending “concerning emails to former supervisors in parks department and publicly airing grievances.” Nelson closed the assessment on April 15, 2026, twelve days after my request for the records of his visit: “there is no evidence White has committed any crimes.”⁴

I asked for the names of the officers who came to my door on April 3. The record that named them reached me on September 3. That is what it cost to learn who they were: a request answered “no records,” a petition to the Attorney General, \$157.50, and five months.

WHAT THE ATTORNEY GENERAL DID WITH EACH PETITION

July 29, 2026: Oregon State Police. The order states that OSP responded to my request “citing the exemption for body camera video provided by ORS 192.345(40).”¹³ The next morning, David Pitcher of the Department of Justice wrote that this reference “comes from the exhibits attached to your petition.”¹⁴ That exhibit was the April 13 fee letter, which identified no recording. The order dismissed the rest of the petition as moot because OSP had reopened the request after I filed it. It found that OSP’s obligation to respond was suspended from April 14 to July 9 because OSP had asked me to complete a fee waiver form, and that OSP had acted “in good faith.” Thirteen days later, OSP identified six kinds of records responsive to the request it had answered with “no records.”⁵

August 4, 2026: Department of Administrative Services. DAS closed my request for its own communications about me by stating it was not the custodian. The order: “we have no reason to second-guess DAS’s representation.”¹⁵ Eight days earlier, DAS had told me it had closed thirty-one requests on that basis from 2024 through 2026, and that its standard was “guidelines provided by the Oregon Department of Justice.”¹⁶

September 24, 2026: Office of the Governor. Deputy Attorney General Benjamin Gutman dismissed my petition on the Governor’s office: “Because your petition seeks records in the custody of the Governor, an elected official, we lack jurisdiction to consider your appeal and must respectfully dismiss your petition.”¹⁷ The order quotes ORS 192.427 as “it shall not be considered by the Attorney General * * *.” The words the asterisks replace are “or district attorney after a claim of right to withhold disclosure by an elected official.” No elected official had claimed a right to withhold anything. Cameron D. Miles, Government Accountability Attorney, had priced the records at \$572.50 and denied my fee waiver.¹⁸

October 1, 2026: the fee waiver alone. Gutman dismissed my second petition, which challenged only the fee waiver denial: “That authority does not include the authority to review decisions made by elected officials. See ORS 192.427; Public Records Order, Oct 2, 2014, Sebens.”¹⁹ The words “decisions made by elected officials” do not appear in ORS 192.324(6), ORS 192.411, or ORS 192.427. ORS 192.427 applies “In any case in which a person is denied the right to inspect or to receive a copy of a public record in the custody of an elected official.” No record had been withheld from me. ORS 192.324(6) gives the Attorney General “the same authority in instances when a fee waiver or reduction is denied as when inspection of a public record is denied.”

The Attorney General’s own Public Records and Meetings Manual states the rule this way: “Neither the Attorney General nor district attorney may review an elected official’s decision to withhold a record from inspection under the Public Records Law.”²⁰ The Department of Justice website states: “If a state agency has denied your request for

public records or your request for a fee waiver or reduction, you may ask the Attorney General to order the agency to provide the records or waive or reduce fees,” and “If an elected official denies your request for public records, you cannot appeal to the Attorney General or District Attorney.”²¹ Both turn on withholding a record. On October 8, I asked the Attorney General’s office why its October 1 order does not appear in the public records order collection maintained through the State of Oregon Law Library.²²

The office deciding these petitions also advises the agencies they concern. OSP’s August 11 letter on request PR36445 withholds “Communication between OSP and DOJ seeking advice or insight” as attorney-client privileged.²³ On February 14, 2026, OPRD Deputy Director J.R. Collier wrote that legal correspondence from me would go to Department of Justice counsel.²⁴ On March 11, 2026, a criminal intelligence analyst at the Department of Justice’s fusion center wrote: “I’m documenting this activity for our internal awareness.”²⁴

WHAT THE AGENCIES CHARGED, AND FOR WHAT

- **Oregon State Police, request PR36445.** I asked for the form letter OSP had identified as its exemption assertion in my case, the instructions governing its use, and the letters issued on it since January 1, 2023, or in the alternative any existing record counting them.^{25, 26} Hubbard priced the letters at 650 hours, described as “approximately 27,000 requests,” with release “within 130 weeks, or 30 months from receipt of payment.” The total due was \$16,315.²³
- **OPRD.** I asked for every record concerning me held by Director Lisa Sumption and Deputy Director J.R. Collier, and for every version of the Timeline of Events OPRD gave the police.^{27, 28} On September 18, 2026, OPRD priced them at \$1,728 and \$80.^{29, 30} Under OAR 736-001-0030, the fee waiver is decided by “the Director or designee,” and the Director is a subject of the request.
- **Office of the Governor.** I asked for the records the office holds concerning me, including how my correspondence was received and routed and whether the Governor was informed.³¹ On September 22, 2026, the office priced them at \$572.50 and wrote: “your request for a fee waiver is denied.”¹⁸

Before any of this, on August 22, 2025, I filed a public records request with OPRD.³² Its automatic reply read: “Expect to hear back from us in about 10 business days.”³³ OPRD posted its answer, dated August 29, to a portal I had no access to and was never told existed. Its first email to me came on November 20, ninety days after my request.³⁴

WHAT I ASK THE LEGISLATURE TO CLOSE

Each gap below appears in this record, in the documents cited above.

1. **The Attorney General will not review a fee waiver denial by an elected official’s office.** The Attorney General reads ORS 192.427 to bar review of the Governor’s office’s fee decision, though no record was withheld and the Attorney General’s own manual ties the bar to “an elected official’s decision to withhold a record.” SB 1077 (2025) did not leave the Senate Committee on Rules, and its proposed amendment kept the bar. I ask the Legislature to confine ORS 192.427 to its own condition: a record withheld on an elected official’s claim of right.
2. **Petitions are decided by the office that advises the agencies petitioned against.** OSP withholds its communications with the Department of Justice as attorney-client privileged, and the Attorney General decides petitions against OSP. The Public Records Advocate is an independent office, but under ORS 192.464 and ORS 192.468 it can only facilitate. I ask the Legislature to place the power to decide public records petitions in an office that does not advise the agencies it reviews.

3. **An exemption can be stated without naming the record it covers.** OSP wrote “The body cam is exempt from disclosure” in a letter that listed no recording. The Attorney General’s order then credited OSP with “citing the exemption,” drawing the reference from my own exhibit. I ask the Legislature to require that every exemption asserted identify each record withheld under it.
4. **A “no records” response need not say what was searched, and the requester can be charged for the records it missed.** OSP answered “no records” the day it received my request, did not answer when I asked what search it had performed, and four months later listed six kinds of records for the same request, priced at \$157.50. I ask the Legislature to require that a “no records” response state the systems searched, and to bar fees for records a public body earlier stated it did not have.
5. **A fee waiver can be decided by the official the records concern.** OPRD’s rule assigns the waiver to “the Director or designee,” and the Director is a subject of my request. I ask the Legislature to require that a fee waiver be decided by someone other than a subject of the records.
6. **A response can be posted where the requester cannot see it.** OPRD’s answer to my 2025 request sat ninety days on a portal I had no access to. I ask the Legislature to require that a response be delivered by the means the requester used.
7. **The Attorney General’s orders can be issued without being published.** I have asked why the October 1 order does not appear in the public records order collection. I ask the Legislature to require that every public records order be published in full, so the reasoning applied to one requester can be read by the next.

Each of these cost me time, money, or an answer I never received. I ask the committees of the Legislature to take them up in the 2027 session.

Respectfully,

Robert Samuel White

Sources

1. [OPRD dismissal, March 24, 2025.](#)
2. [\(Testimony v1.11, p. 258\).](#)
3. [An Open Letter, August 24, 2025.](#)
4. [Oregon State Police production, PR27478, September 3, 2026.](#)
5. [PR27478: the records identified, and a fee, August 11, 2026, with the April 3 request form.](#)
6. [No-records response, April 3, 2026.](#)
7. [Five questions regarding the search, April 3, 2026.](#)
8. [Fee letter, April 13, 2026.](#)
9. [The CAD record released, July 14, 2026.](#)
10. [The District Ranger, Forest Service, July 24, 2026.](#)
11. [Petition to the Attorney General, July 22, 2026.](#)
12. [Oregon State Police reopens PR27478, July 27, 2026.](#)
13. [Attorney General’s order, DOJ File No. 257001-GA0140-26, July 29, 2026.](#)
14. [David Pitcher, Oregon Department of Justice, July 30, 2026.](#)
15. [Attorney General’s order, DOJ File No. 107062-GA0144-26, August 4, 2026.](#)

16. [DAS answer to request R000885, July 27, 2026.](#)
17. [Attorney General's order, DOJ File No. 121010-GA0187-26, September 24, 2026.](#)
18. [The fee waiver is denied: \\$572.50, September 22, 2026.](#)
19. [Attorney General's order, DOJ File No. 121010-GA0187-26, October 1, 2026.](#)
20. [Attorney General's Public Records and Meetings Manual, 2024, p. 37.](#)
21. [Oregon Department of Justice, Public Records and Meetings Law.](#)
22. [Publication of the October 1 order, October 8, 2026.](#)
23. [PR36445: the records identified, and a fee of \\$16,315, August 11, 2026.](#)
24. [Deputy Director Collier, February 14, 2026.](#)
25. [Public records request PR36445, July 30, 2026.](#)
26. [Holly Bolton, OSP: the April 13 fee letter, provided as the exemption assertion, July 30, 2026.](#)
27. [The request narrowed to the Director and Deputy Director, September 11, 2026.](#)
28. [Public records request: version history, September 11, 2026.](#)
29. [The September 5 request, priced at \\$1,728, September 18, 2026.](#)
30. [The Timeline version histories, priced at \\$80, September 18, 2026.](#)
31. [Public records request to the Office of the Governor, September 5, 2026.](#)
32. [Public records request to OPRD, August 22, 2025.](#)
33. [OPRD's automatic reply, August 22, 2025.](#)
34. [Katie Gauthier, OPRD, November 20, 2025.](#)